



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

December 13, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 12056
(FIFTEENTH REVISION)

EXPIRATION DATE: 2026-10-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: U.S. Department of Defense (DOD)
Scott Air Force Base, IL
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain non-DOT specification propellant tanks designed to a military specification, overpacked in a UN 1A2 stainless steel drum, containing Division 6.1 liquid or Division 2.3 gas. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.227 and 173.336 in that non-DOT specification packaging is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of U.S. Department of Defense dated October 27, 2022, submitted in accordance with § 107.109.

Tracking Number: 2022105213

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Dinitrogen tetroxide, liquefied	2.3	UN1067	N/A
Toxic by inhalation liquid, corrosive, n.o.s., <i>with an inhalation toxicity lower than or equal to 1000 ml/m3 and saturated vapor concentration greater than or equal to 10 LC50</i>	6.1	UN3390	I, Zone B

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Prescribed packaging is a non-DOT specification aluminum propellant tank without a pressure relief device, overpacked in a UN 1A2 stainless steel drum. The tank is designed in conformance with Military Specification MIL-STD-1522 for pressure vessels with a minimum burst pressure of 150% of the maximum operating pressure.

(1) The propellant tank consists of an outer shell of composite construction, an inlet tube, a positive displacement expulsion liner made of aluminum, a burst disc assembly and a titanium fill valve. The tank diameter is 7.3 inches maximum and the length is 17.5 inches. The maximum volume of a propellant tank is 8.0 liters.

(2) Each propellant tank is held in a shock-dampening frame which is packaged in a DOT Specification 1A2 steel drum. The drum has a mechanical recorder and visual indicators for shock protection.

(3) The packagings described under this special permit are authorized for reuse. Before reuse, each package must be inspected and found to be free of damage, defects or leaks or evidence of a reduction in integrity, and in conformance with the original design specification and this special permit.

(4) DOD only must report to the Office of Hazardous Materials Safety (OHMS) any packaging that does not successfully meet the reuse criteria outlined in paragraph 7.a.(3) above. This report must be received within 60 days of the noted inspection failure and include a summary of the failure.

b. OPERATIONAL CONTROLS:

(1) The propellant tank may not be pressurized during transportation.

(2) The propellant tank may only be transported in temperature controlled motor vehicles and freight containers.

(3) Emergency response information provided with the shipment and available via an emergency response telephone number must indicate that the propellant tanks are not fitted with pressure relief devices and provide appropriate guidance for exposure to fire.

8. SPECIAL PROVISIONS:

a. The transportation of the material authorized under this special permit is limited to U.S. government purposes by the Department of Defense (DOD) only and persons conducting operations under the direction of DOD officials and their designees.

b. DOD only must submit an annual transportation summary of the shipping activity conducted under this special permit to OHMS. The annual summary must include all shipment origins and destinations and number of hazardous material shipments per material and per destination.

c. MARKING: The outside of each UN 1A2 steel drum must be plainly and durably marked "DOT-SP 12056" as specified in § 172.301(c).

d. This special permit serves as a Competent Authority Approval (CA-2003090016) issued by the Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, of the United States Department of Transportation, in accordance with Section 4.1.3.7 and Chapter 7.9 of the International Maritime Dangerous Goods Code (IMDG).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.

10. MODAL REQUIREMENTS:

a. A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

b. For highway transportation, the two propellants authorized by this special permit may not be transported on the same motor vehicle simultaneously. The maximum quantity of any propellant on a motor vehicle may not exceed 24 liters (3 tanks).

c. The cargo vessels used to transport the materials authorized by this special permit must be operated by Matson Navigation Company, Lynden Transport, and TOTE Transport, Port of Oakland, California.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) – “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this

special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "Dan Buz", is written over a faint, circular official stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: JN